



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 14TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 12TH DAY OF APRIL, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA
HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

COUN. MA. ELIZA H. LLOVIT - On Official Leave of Absence (FL)

- - -

Resolution No. 131-2021

RESOLUTION ADOPTING AN ORDINANCE PROVIDING REGULATIONS IN THE OPERATION OF BICYCLES IN THE MUNICIPALITY OF DAET, CAMARINES NORTE AND PROVIDING PENALTIES FOR THE VIOLATION THEREOF

WHEREAS, it is the policy of the State to protect and promote the right to health of the people and instill health consciousness as well as to protect the environment for a balanced and healthful ecology;

WHEREAS, with the declaration of community quarantine in the country due to pandemic COVID-19, the Department of Transportation issued guidelines that encourage the use of bicycles and similar devices to prevent the spread of virus due to the difficulty of enforcing physical distancing measures in the public transport services;

WHEREAS, the Joint Administrative Order No. 2020-00001 of DOH- DOTr-DILG and DPWH provides guidelines on the proper use and promotion of active transport during and after the COVID-19 pandemic wherein the active transport is referring to physical activity undertaken as a means of transport which includes bicycle;

WHEREAS, the province of Camarines Norte is still under Modified Community Quarantine (MGCQ) implementing 50% ban on public transport services, thus, leaving many commuters to find alternative means of mobility such as bicycles and other non-motorized mode of transportation;

WHEREAS, with the recent proliferation of cyclists in the Municipality of Daet, Camarines Norte by the reason of the new normal brought upon by the pandemic, the wearing of protective helmet will decrease the risk of the bicycle riders against head injuries while traversing our local and national roads;

WHEREAS, Article XXVI of Municipal Ordinance No. 01A s. 1992 known as the Traffic Code of Daet requires the registration of bicycle with the Municipal Treasurer annually;

WHEREAS, while the use of bicycle for physical exercise, leisure and as mode of transportation in this time of pandemic, regulations must be provided to ensure the protection of bicycle owner or cyclist in the municipality which is the top priority of this Ordinance;

NOW THEREFORE, after due deliberation, on motion of Councilor Tomasito Santiago C. Turingan and Councilor Judy Rose T. Gallardo as co-author and with Councilor Apolonio B. Panong, as co-movant, seconded by Councilors William Carlo R. Avila, Rossano C. Valencia, Felix C. Abaño, Pedro S. Musa and Ma. Eliza H. Llovit;

BE IT RESOLVED, as it is hereby resolved to adopt:

MUNICIPAL ORDINANCE NO. 409-2021

AN ORDINANCE PROVIDING REGULATIONS IN THE OPERATION OF BICYCLES IN THE MUNICIPALITY OF DAET, CAMARINES NORTE AND PROVIDING PENALTIES FOR THE VIOLATION THEREOF

BE IT ORDAINED, by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE - This Ordinance shall also be known as the "**BICYCLE REGULATION ORDINANCE OF DAET, CAMARINES NORTE.**"

SECTION 2. SCOPE – This Ordinance shall take effect within the territorial jurisdiction of Daet, Camarines Norte.

SECTION 3. DEFINITION OF TERMS – The following words whenever used in this Ordinance, shall be construed and defined in this section, to wit:

a) **BICYCLE** – refers to a vehicle composed of two wheels held in a frame one behind the other, propelled by pedal and steered with a handlebars attached to the front wheel which is either propelled by human power or electronically (e-bikes).

b) **HELMET** – refers to a hard or padded protective gear worn on a person head.

SECTION 4. GENERAL REGULATIONS. To establish ownership and protect the life and property of bicycle owner/cyclist, the following regulations are promulgated in the operation of bicycle in the municipality of Daet, Camarines Norte:

A. Registrations.

- i. Owner of bicycle residing in the Municipality of Daet shall register their device at the Municipal Treasurer's Office. For this purpose, there shall be levied and collected a registration fee of P 100.00 per bicycle to be paid on or before last working day of December of each year.
- ii. The LGU Daet through the Municipal Treasury shall provide a uniform registration sticker for the device which is chargeable to the registration fee. The registration sticker shall be placed by the owner of bicycle at the rear of their bicycle exposed to the public view.



- iii. No registration shall be made without satisfactory written evidence of ownership or legal possession of any bicycle acceptable to the Municipal Treasury such as: official receipt, barangay certification or any documents that will establish ownership of the bicycle.
- iv. Cyclist who is passing by and not a resident of Daet are exempted from this registration. Provided however, they shall submit to the law enforcer any proof of ownership or legal possession of their bicycle once they were flagged down for the purpose.

B. Application of Traffic Laws.

- i. Every person riding a bicycle upon a roadway or upon any path set aside for the exclusive use of bicycles in the Municipality of Daet shall be granted all of the rights as road user and shall be subject to all of the duties and responsibilities applicable to the driver of a vehicle under existing laws, ordinances and rules governing traffic regulations.

C. Safety and Protection While Riding the Bicycle Within the Territorial Jurisdiction of Daet.

- i. Every rider or cyclist shall wear a protective helmet while riding a bicycle in the Municipality of Daet.
- ii. All bicycle operating within the Municipality of Daet, shall be equipped with a mechanical or friction brakes.
- iii. Every person operating a bicycle upon a roadway shall ride at the outermost right side lane of the roadway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction.
- iv. Whenever a usable path for bicycles has been provided adjacent to a roadway, bicycle riders shall use such path and shall not use the roadway.
- v. No person shall ride a bicycle upon a sidewalk. In inevitable circumstances, whenever any person is riding a bicycle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing such pedestrian.
- vi. No person operating a bicycle shall carry any package, bundle, or article which prevents the driver from keeping at least one hand upon the handle bars.
- vii. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.
- viii. Cyclists or bicycle riders are prohibited to cling or hold on the other vehicle ahead for the purpose of being pulled.
- ix. Bicycle riders are prohibited to travel side by side holding each other.
- x. Texting or using mobile phones while running a bicycle is prohibited.
- xi. Every bicycle when is use at nighttime shall be equipped with a lamp or blinker or reflectorized sticker on the front and on the rear which shall emit a



light or make them visible from a distance, in addition to the, cyclist may also wear a reflectorized vest.

D. Exemption. Organized bicycle race is exempted from these provisions, provided, such event has secured special permit from the Local Chief Executive.

SECTION 5. PENALTIES – Any person held liable under this Ordinance shall be penalized as follows:

A. For Violation of Section 4 (A)

- i. Impounding of bicycle until such time proof of registration or legal possession have presented at the Municipal Treasury.
- ii. Impounded bicycle for more than 24 hours will require the owner to pay impounding fee in the amount of P50.00 per 24 hours.
- iii. At the expiration of ninety (90) days after such impounding, each bicycle which has not been claimed by its owner may be sold at public auction in accordance to the existing law.

B. For violation of Section 4 (B). Any cyclist or rider who caught in violation of traffic rules, the penalties being imposed under existing law shall apply as indicated in the traffic citation ticket.

C. For violation any of Section 4 (C).

First Offense	-	Fine of One Hundred Pesos (P 100.00)
Second Offense	-	Fine of Three Hundred Pesos (P 300.00)
Third Offense	-	Fine of Five Hundred Pesos (P 500.00)

D. In case the offender is a minor, the fine shall be imposed to the parents, guardian or person who has custody of the minor.

SECTION 6. IMPLEMENTING UNIT – The Public Safety and Traffic Management Unit (PSTMU) and Daet PNP shall be the lead agency/unit in the implementation of this Ordinance.

SECTION 7. REPEALING CLAUSE – All ordinances, resolutions, local executive orders, rules and regulations or any part thereof inconsistent herewith are deemed repealed, modified or amended accordingly.

SECTION 8. SEPARABILITY CLAUSE – In case any provision of this ordinance is declared unconstitutional or invalid, the other provision hereof which not affected thereby shall continue in full force and effect.

SECTION 9. EFFECTIVITY CLAUSE – This ordinance shall take effect immediately upon its approval.

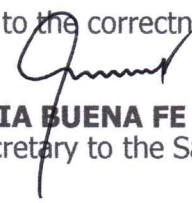
ENACTED.

RESOLVED FURTHER, to furnished copies hereof, all Bicycle Riders Group, all Bicycle Shops, Media, Public Safety and Traffic Management Unit (PSTMU), Philippine National Police (PNP), Municipal Disaster Risk Reduction and Management Office (MDRRMO), all Punong Barangays in the Municipality of Daet, Camarines Norte, and all others concerned, for their information and appropriate action;



CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. TOMASITO SANTIAGO C. TURINGAN
Author


COUN. JUDY ROSE T. GALLARDO
Co-author

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: APR 16 2021